

evidence merely on the same footing as any other evidence taken by a Plaintiff, when the Defendant can read the cross-examination if the examination in chief has been read. It differs from ordinary evidence taken by a Defendant, for that can be read by a Plaintiff if he thinks proper, whether the Defendant reads it or not. The following is the Order :—

Where the examining party uses any portion of the evidence taken under Order L. (but not otherwise), then it shall be competent for those, against whom it is used, to put in the entire evidence so taken, as well that given in chief as that in explanation.

LIX.
All evidence may be read, if any part read.

It frequently happens, that in the examination before a Master Extraordinary in the country, the evidence is but imperfectly taken down; and, previous to the new rules, this led to much serious inconvenience, for it was only under the most special circumstances, and indeed very rarely, that a witness could be recalled. The following rule renders the practice more reasonable.

Whenever the evidence in a cause or any part thereof has been taken before an examiner or commissioner, and it can be made to appear that it would be conducive to the ends of justice that any of the witnesses so examined (whether parties to the record or not) should be examined before the Court upon the hearing, it shall be competent to any party concerned in interest, at any time after publication passed, to apply to the Court, by motion, supported by affidavit, for that purpose; and thereupon it shall be competent for the Court to make such order as under all the circumstances may seem just.

LX.
Witness may be recalled, if he has been imperfectly examined before Master Extraordinary.

The time for taking the evidence is limited by the following Order :—

The rules to produce witnesses and pass publication are henceforth to be discontinued. Publication is to pass without rule or order on the expiration of two months after the filing of the replication, unless such time expire in the long vacation, or is enlarged by order; but in the computation of the two months hereby allowed, or any enlargement of such time, the long vacation is not to count. If the time be enlarged by order, publication is to pass without rule or order on the expiration of such enlarged time, unless the time is further enlarged by order.

LXI.
Publication passed in two months, unless enlarged by order.

The Orders under which the time for passing publica- Application to